

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No.2503 of 1998.

Nurul Anwar and others.

.....Petitioners.

Vs.

Abdur Rahman being dead his heirs:

Mrs. Zakia Akhter and others.

..... Opposite-Parties.

Mr. Saifur Rashid, Advocate.

..... for the petitioners.

Mr. M. Masud Rana, Advocate

.....for the opposite-parties.

Heard on: 16.07.2023 and

Judgment on: 17.07.2023.

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order No.123 dated 29.03.1998 passed by the then learned Sub-Ordinate Judge, 3rd Court, Dhaka in Miscellaneous Case No.406 of 1989 allowing the prayer for setting aside an order of abatement in the suit and restoring the S.C.C. Suit No.10 of 1985 of the then 3rd Court of Sub-Ordinate Judge, Dhaka and allowing the substitution of the heirs of the deceased of the sole defendant, should not be set-aside and/or pass such other order or further order or orders as to this court may fit and proper.

The relevant fact giving arise to this Rule, in short, is that the opposite party as plaintiff instituted S.C.C. Suit being No.10 of 1985 before the then learned Sub-Ordinate Judge, 3rd Court, Dhaka for eviction of the petitioners

from a shop room at 9/I Motijheel, C/A, P.S. Motijheel, Dhaka where he has been running his business in Pharmaceutical item under the name and style of M/S. Apex Pharmacy in the suit.

The petitioner as defendant contested the suit filing a written statements denying all allegations and on the grounds that there was no cause of action in the instant suit and no written contract for tenancy in between parties of the shop room.

During pendency of the S.C.C. suit being No.10 of 1985 in the then Court of Sub-Ordinate Judge, 3rd Court, Dhaka the sole defendant Shamsul Huda died on 07.10.1988 leaving behind his widow and the present petitioners as his sons and daughters as his heirs.

The learned Advocate for the petitioner as defendant filed an application for recording an order of abatement in the suit before the learned Court of the then Sub-Ordinate Judge, 3rd Court, Dhaka. But the defendant did not take any step to substitute as the defendant's heirs.

Thereafter, the present opposite party as plaintiff filed a Miscellaneous Case No.406 of 1989 before the then Court of Sub-Ordinate Judge, 3rd Court, Dhaka on 08.03.1989 under Order XXII Rule 9 of the Code of Civil Procedure for setting aside an order of abatement in the suit and restoring the original Suit as number in S.C.C. Suit No.10 of 1985. The defendant as petitioners contested the Miscellaneous Case filing written objection denying all material allegations that the suit is barred by limitation and is not maintainable. After hearing both the parties the learned Court

below allowed the Miscellaneous Case No.406 of 1989 for setting aside an order of abatement in the suit and restoring the S.C.C. Suit No.10 of 1985 and also allowing the substitution of the heirs of the deceased of the sole defendant by the impugned judgment and order dated 29.03.1998.

Being aggrieved by and dissatisfied with the impugned judgment and order dated 29.03.1998 the defendants as petitioners preferred in Civil Revision No.2503 of 1998 under section 25 of the Small Causes Courts Act, 1887 before this Court and obtained the instant Rule with granting ad-interim order of stay. Thereafter, on 05.07.1999 the order of stay granted earlier by this Court is extended till disposal of the Rule.

Mr. Saifur Rashid, the learned advocate appearing for the petitioners has placed the Revisional application and submits that the learned Court below was committed an error of law in not considering the legal position that since there was admittedly a delay in filing the Miscellaneous Case for setting aside an order of abatement in the suit whether it is delay of 152 days as claimed by the petitioners and without any application for condonation of such delay, explaining each and every day of delay, the delay cannot be condoned. He further submits that the defendant filed an application for recording an order of abatement in the suit and the learned trial Court erroneously held that the defendant did not serve the copy of the said application upon the plaintiff for recording the abatement, ignoring the fact. On this point, the learned trial Court committed erroneous view. He further submits that the learned Court below has totally failed to considering the

evidence on record and arbitrary decision that setting aside an order of abatement in the suit and restoring the S.C.C Suit as original number and the learned Court below has failed to apply his judicial mind to the fact and circumstances of the case and thereby committed an error of law resulting in an error in the decision occasioning failure of justice and as such he prayed for to make the Rule absolute.

Mr. M. Masud Rana, the learned advocate appearing for the opposite-parties who opposed the Rule and submits that the learned trial Court considering the facts and circumstances of the case and materials on record rightly allowed the application for setting aside an order of abatement in the suit and restoring the S.C.C. Suit No.10 of 1985 in the then Sub-Ordinate Judge, 3rd Court, Dhaka. The defendant as petitioners filed an application for recording an order of abatement in the suit who died on 17.10.1988 as a sole defendant but the defendant did not serve the copy of the aforesaid application upon the plaintiff. Therefore, the learned Advocate for the plaintiff had no knowledge regarding the death of the sole defendant when the plaintiff came to know about the death of the sole defendant then he filed a Miscellaneous Case for setting aside an order of abatement in the suit under Order XXII Rule 9 of the Code of Civil Procedure. He further submits that there is no reason to interference by this court and as such the Rule is liable to be discharged.

In order to appreciate the submissions made by the learned advocates for the parties, I have gone through the Revisional application, pleadings, judgment and order of the Court below very carefully.

Now the question calls for consideration whether the learned Judge of the Court below has committed any error of law resulting in an error in the decision occasioning failure of justice in passing the impugned judgment and order.

On perusal of the records it appears that the opposite party as plaintiff filed in Miscellaneous Case No.406 of 1989 for setting aside an order of abatement in the suit and restoring the S.C.C. Suit No.10 of 1985 under Order XXII Rule 9 read with section 151 of the Code of Civil Procedure. The defendants-petitioners denied the all material allegations.

Since the instant Rule is obtained against an interlocutory order, I need not enter into the merit of the case at this stage and suffice it to say that the then learned Sub-Ordinate Judge, 3rd Court, Dhaka considering the facts and circumstances of the case and materials on record allowed the application on the findings that-“বিবাদীপক্ষ ইং ৩০/১/৮৮ তারিখে কোর্টকে অবহিত করেছে এবং মামলাটি এবেটমেন্ট রেকর্ড করার প্রার্থনা করেছে। ঐ দরখাস্তের কপি জারী হয় নাই। অতঃপর ইং ০৮/৩/৮৮ তারিখে বাদীপক্ষ এবেটমেন্ট আদেশে রদ পূর্বক মৃত শামসুল হুদার ওয়ারিশদের জ্ঞাতিভিষিক্ত করার আবেদন করেছেন। অর্থাৎ রেকর্ডে ঐ বিষয়টি এসেছে ইং ৩০/১/৮৮ তারিখে। ঐ তারিখে বিবাদীপক্ষ দরখাস্ত দিলেও বাদীকে কপি প্রদান করা হয় নাই এবং ৩৪ নং আদেশে উল্লেখ আছে অনুলিপি জারী হয় নাই। অতঃপর ইং ০৮/৩/৮৮ তারিখে বাদীপক্ষ এবেটমেন্ট আদেশ রদ করে মৃত শামসুল হুদার ওয়ারিশদের কায়ম মোকামের প্রার্থনা করেছে। অর্থাৎ এক্ষেত্রে বলা যায়, বাদী ইচ্ছাকৃত ভাবে মৃত ব্যক্তির

ওয়ারিশদের পক্ষ না করা সম্পর্কে কোন ত্রুটি করেন নাই। তাছাড়া মামলা এবেট হলে বাদীপক্ষের অপূরণীয় ক্ষতি হবে। উপরন্তু এ মামলাটি পুনঃ শুনানীর পর্যায়ে ছিল।” there is no committed any infirmity or illegality allowing the application for setting aside an order of abatement in the suit and restoring the S.C.C Suit No.10 of 1985 under Order XXII Rule 9 read with section 151 of the Code of Civil Procedure.

It appears that the plaintiff was filed a Miscellaneous Case No.406 of 1989 on 08.03.1988 but the Miscellaneous Case was registered on 18.05.1989 even then it was filed after 152 days of the death of the sole defendant who died on 09.10.1997. Now coming to the objection raised by the learned Advocate for the present petitioners that there is no application for condonation of such delay and as such the learned Court below failed to consider those admitted position and committed an error of law resulting in an error in the decision occasioning failure of justice. On the other hand, the opposite party claimed that the petitioners as defendant filed an application for recording an order of abatement in the suit who died on 07.10.1988 as a sole defendant. Though the aforesaid application was not serve upon the plaintiff and the learned Advocate for the plaintiff had no knowledge regarding the death of the sole defendant and as such he did not take any step for substitution of the defendant No.1 to 9 in place of deceased defendant Shamsul Huda and consequently the suit abated for non substitution of the defendant No.1 to 9 within the period of limitation. Therefore, the plaintiff as opposite party was shown sufficient cause in case

of delay in making substitution within the date of knowledge before the then Court of Sub-Ordinate Judge, 3rd Court, Dhaka.

Scrutinizing the relevant papers and documents, it is obvious to note that admittedly the learned Advocate for the defendant filed an application for recording an order of abatement in the suit who died on 17.10.1988 as a sole defendant, although the defendant did not serve the copy upon the plaintiff. The learned Advocate for the plaintiff was not aware of the death of the sole defendant. In such circumstances, it was not possible for him to take necessary any steps for substitution of the defendant No.01 to 09 in place of deceased Shamsul Huda. The cause of delay seems to have unintentional which was beyond control of the plaintiff. However, the plaintiff-opposite party filed a Miscellaneous Case being No.406 of 1989 under Order XXII Rule 9 of the Code of Civil Procedure for setting aside an order of abatement in the suit and restoring the original S.C.C. Suit No.10 of 1985 after 152 days of the death of sole defendant. It appears that under Order XXII Rule 9(2) of the Ain may be looked into which run as follows:

“The plaintiff or the person claiming to be the legal representative of a deceased plaintiff or the assignee or the receiver in the case of an insolvent plaintiff may apply for an order to set aside the abatement or dismissal; and if it is proved that he was prevented by any sufficient cause from continuing the suit, the Court shall set aside the abatement or dismissal upon such terms as to costs or otherwise as it thinks fit.”

From plain reading of provision of law it appears that Order XXII Rule 9(2) of the Code of Civil Procedure provides for substitution of the heirs where the right to sue survives after the death either of the plaintiff or the defendant and though the period of limitation has been prescribed for substitution of the heirs of the deceased plaintiff or defendant but thereafter as well provision has been made for substitution of the heirs of the deceased after setting aside the abatement and more so, the legislature in its wisdom has provided for application of section 5 of the Limitation Act, showing sufficient cause in case of delay in making substitution within the period of limitation which necessarily implies that the legislature intended for disposal of a suit on contest and not to deprive the parties of a decision on technicalities where right to sue survives even after the death of one of the parties in the suit. The reasons for delay are satisfactory explained and as such, the same can be accepted. It find support our Apex Court decision in the case of Hazi Habibur Rahman Vs. Ayub Ali Sawdagar and others, reported in 58 DLR(AD) 223, where it has been held that:

“Even in the absence of an application under Section 5 of the Limitation Act, if the court is satisfied from the materials on record including the application for substitution, the Court could set aside the abatement and allow substitution accordingly.”

In view of the above findings and decision having been rested upon considerations and discussions of the materials on record and also on a

correct and proper analysis of the legal aspect of the case I am of the opinion that the impugned judgment and order of the Court below in it's entirety are well reasoned, consistent and practical.

Having regard to the facts and circumstances as discussed above I am to hold that in the impugned judgment and order there is no illegality or infirmity or misreading or non reading of the evidence or non consideration of material facts resulting in an error in the decision occasioning failure of justice by which it can be interfered with. Thus, I find no merit in this Rule.

In the result, the Rule is discharged.

However, there will be no order as to costs.

The impugned judgment and order No.123 dated 29.03.1998 passed by the then learned Sub-Ordinate Judge, 3rd Court, Dhaka in Miscellaneous Case No.406 of 1989 is hereby affirmed.

In view of the facts, it is an old case of 1985 I am inclined to direct the learned Court below to dispose of the S.C.C. Suit No.10 of 1985 after taking evidence on merit within 06(six) months from the date of receipt of this judgment and order positively.

The order of stay granted earlier by this Court is hereby recalled and vacated.

Let a copy of the judgment and order be sent to the court concerned at once.